

24TRCV03768 24TRCV03768

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Case Number: 24TRCV03768 Hearing Date: July 14, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

DONALD JAMES VARGO

, et al.;

Plaintiffs,

vs.

VOLKSWAGEN GROUP OF
AMERICA, INC.

, et al.;

Defendants.

Case

No.:

24TRCV03768

Hearing

Date:

July
14, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION TO COMPEL initial responses to
inspection demand, set one, from PLAINTIFF DONALD JAMES VARGO

(2)

DEFENDANT

VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION TO COMPEL initial responses to
inspection demand, set one, from PLAINTIFF ALEJANDRA VARGO

(3)

defendant

VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION TO deem requests for admissions,
set one, admitted as to PLAINTIFF DONALD JAMES VARGO

(4)

DEFENDANT

VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION TO deem requests for admissions,
set one, admitted as to PLAINTIFF ALEJANDRA VARGO

(5)

DEFENDANT

VOLKSWAGEN GROUP OF AMERICA, INC.'S REQUESTS FOR MONETARY sANCTIONS

MOVING PARTY: Defendant,
Volkswagen Group of America, Inc.

RESPONDING

PARTY: Plaintiffs,

Donald James Vargo and Alejandra Vargo

(1)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Donald James Vargo is GRANTED pursuant to Code of Civil Procedure section 2031.300, subdivision (b).

(2)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Alejandra Vargo is GRANTED pursuant to Code of Civil Procedure section 2031.300, subdivision (b).

(3)

Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Donald James Vargo is GRANTED pursuant to Code of Civil Procedure section 2033.280, subdivision (b).

(4)

Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Alejandra Vargo is GRANTED pursuant to Code of Civil Procedure section 2033.280, subdivision (b).

(5)

Defendant

Volkswagen Group of America, Inc.'s Requests for Monetary Sanctions are GRANTED pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2031.300, and 2033.280.

The Court considers the moving papers filed on May 1, 2026, the opposition brief filed on July 2, 2026, and the reply briefs filed on July 7, 2026.

BACKGROUND

Factual Background

On November 6, 2024, plaintiffs Donald James Vargo and Alejandra Vargo (collectively, "Plaintiffs") filed the Complaint against defendants Volkswagen Group of America, Inc. ("Volkswagen"), PVW South Bay, LLC, dba Pacific Volkswagen, and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of the Song-Beverly Consumer Warranty Act – Breach of Express Warranties; (2) Breach of Implied Warranty (Song Beverly); (3) Violation of Business and Professions Code section 17200; and (4) Negligent Repair.

On February 24, 2026, Volkswagen served Plaintiffs with two sets of discovery requests: (1) Inspection Demand, Set One, and (2) Request for Admissions, Set One. (Declaration of Chiamaka S. Enemuoh re: RFP ("Enemuoh Decl. re: RFP"), ¶ 3, Exh. A; Declaration of Chiamaka S. Enemuoh re: RFA ("Enemuoh Decl. re: RFA"), ¶ 3, Exh. A.) Plaintiffs were required to respond by March 30, 2026, without any extensions. (Enemuoh Decl. re: RFP, ¶ 4; Enemuoh Decl. re: RFA, ¶ 4.)

On April 21, 2026, Volkswagen sent a letter to Plaintiffs' counsel requesting a status update on the responses. (Enemuoh Decl. re: RFP, ¶ 5, Exh. B; Enemuoh Decl. re: RFA, ¶ 5, Exh. B.) Plaintiffs failed to respond to the meet-and-confer correspondence or to provide responses to the discovery requests by the filing date of May 1, 2026. (Enemuoh Decl. re: RFP, ¶ 6; Enemuoh Decl. re: RFA, ¶ 6.)

Procedural Background

On May 1, 2026, Volkswagen filed these omnibus motions. On July 2, 2026, Plaintiffs filed an opposition to the motion to deem admissions as admitted, but they did not submit an opposition brief concerning the motion to compel. On July 7, 2026, Volkswagen filed reply briefs.

LEGAL STANDARD

A party must respond to requests for production and admission within thirty (30) days after service. (Code Civ. Proc., §§ 2031.260, subd. (a), 2033.250, subd. (a).)

When there has been no timely response to a Code of Civil Procedure section 2031.010 demand, the demanding party may seek an order compelling a response. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to respond in a timely manner waives all objections, including those based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from a waiver, they cannot raise objections to the documents demanded. There is no time limit for a motion to compel responses to a demand for inspection, copying, testing, or sampling other than the cut-off on hearing discovery motions, fifteen (15) days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2031.300.) Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. (Code Civ. Proc., § 2031.300.) Where the motion seeks only a response to the inspection demand, no showing of “good cause” is required. (Code Civ. Proc., § 2031.300.)

“Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2031.300, subd. (c).)

Pursuant to Code of Civil Procedure section 2033.280, “[i]f a party to whom requests for admission are directed fails to serve a timely response,” the court shall make the order deeming the truth of the matters admitted unless the responding party serves before the hearing a proposed response to the requests for admission that is in substantial compliance with Code Civil Procedure section 2033.220. Code of Civil Procedure section 2033.220 requires each answer to either admit, deny, or specify that the responding party lacks sufficient information or knowledge. As stated in *Demyer v. Costa Mesa Mobile Home Estates*, the moving party is not required to meet and confer before bringing this action. (*Demyer v.*

Costa Mesa Mobile Home Estates, 36 Cal.App.4th 393, 395.)

“The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).) “Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc., § 2023.010, subd. (d).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

Omnibus Motion

Volkswagen is seeking court orders to compel the initial responses and documents pertaining to Inspection Demand, Set One, as well as to have the Requests for Admission, Set One, deemed admitted for the two plaintiffs, Donald James Vargo and Alejandra Vargo. (MTC re: RFP, p. 3:3-22; MTC re: RFA, p. 3:3-18.) Volkswagen has erroneously

combined four distinct motions into two separate filings.

Multiple motions should not be combined into a single filing. (See Gov. Code, § 70617, subd. (a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing].) Combining multiple motions under the guise of one motion with one hearing reservation manipulates the Court Reservation System and unfairly jumps ahead of other litigants. Moreover, combining motions to avoid payment of separate filing fees deprives the Court of the filing fees it is otherwise entitled to collect. Filing fees are jurisdictional, and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.)

The Court reminds Volkswagen that all future motions must be filed individually, pursuant to Government Code section 70617. On June 24, 2026, the Court noted that Volkswagen had submitted an omnibus motion and stated, "Any omnibus filings submitted in the future shall be denied without prejudice." (June 24, 2026, Minute Order, p. 6.) As Volkswagen filed these omnibus motions on May 1, 2026, the Court will not deny them without prejudice. However, any omnibus motions filed after the June 24, 2026, hearing will be denied without prejudice. Furthermore, the following orders are contingent upon Volkswagen paying two additional filing fees within ten (10) days of the date of this order.

Untimely Opposition Brief

Volkswagen requests that the Court not consider any untimely opposition briefs filed by Plaintiffs. (Reply re: RFA, p. 2:20-27.) The Court DENIES Volkswagen's request.

"All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).)

Given that the motions are scheduled to be heard on July 14, 2026, Plaintiffs were required to file and serve their opposition briefs by June 30, 2026. However, Plaintiffs submitted their opposition brief on July 2, 2026, which is two court days past the deadline.

The Court typically exercises

its discretion to consider an opposition brief that is filed a couple of days

late, particularly when the moving party submits a reply brief. (See Cal. Rules of Court, rule 3.1300(d).) In this case, Plaintiffs submitted their

opposition brief two court days after the established deadline, while

Volkswagen submitted its reply brief within the required time frame. Consequently, the Court chooses to exercise its discretion to consider the untimely opposition brief.

Motions to Compel

In their opposition brief regarding Requests for Admission, Set One,

Plaintiffs have attached their unverified responses. (Opp. re: RFA, pp. 6-38.) Moreover, although Plaintiffs appear to have served an opposition brief on Volkswagen regarding Inspection Demand, Set One,

they did not file an opposition brief with this Court. Consequently, it remains undisputed that

Plaintiffs did not provide verified responses to Volkswagen's discovery requests. Given that unverified

responses are tantamount to no responses at all, the Court GRANTS Volkswagen's omnibus

motion to compel initial responses to Inspection Demand, Set One, and deems the

matters admitted. (See *Appleton v.*

Superior Court (1988) 206 Cal.App.3d 632, 635-636.)

Requests For

Monetary Sanctions

Volkswagen requests a total of \$3,280.00 in sanctions to cover

attorney's fees and costs incurred from the filing of each omnibus motion, with

each motion accounting for \$1,640.00. (MTC

re: RFP, pp. 6:10-7:3; MTC re: RFA, pp. 6:10-7:2.) These requests are made pursuant to the Code

of Civil Procedure sections 2023.010, 2023.030, 2031.300, and 2033.280. (MTC re: RFP, p. 6:12-20; MTC re: RFA, p. 6:11-19.)

The requests are

supported by declarations from Volkswagen's counsel, Chiamaka S. Enemuoh. In these declarations, Enemuoh states that their hourly rate is \$395.00 and that they have dedicated 2.0 hours to drafting

each motion. (Enemuoh Decl. re: RFP, ¶

7; Enemuoh Decl. re: RFA, ¶ 7.) Furthermore,

Enemuoh anticipates spending an additional 2.0 hours to review each opposition

and prepare a reply brief. (Enemuoh

Decl. re: RFP, ¶ 7; Enemuoh Decl. re: RFA, ¶ 7.) Additionally, Volkswagen incurred \$120.00 in

filing fees. (Enemuoh Decl. re: RFP, ¶

7; Enemuoh Decl. re: RFA, ¶ 7.)

Considering that the Court is granting these motions and does not find the imposition of sanctions to be unjust, the Court GRANTS Volkswagen's requests for sanctions against Plaintiffs. The Court finds the requested amounts to be appropriate.

ORDERS

1) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Donald James Vargo is GRANTED.

2) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Alejandra Vargo is GRANTED.

3) Plaintiffs

Donald James Vargo and Alejandra Vargo are ordered to provide verified, code-compliant responses and documents to Inspection Demand, Set One, on or before July 28, 2026, without objections.

4) Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Donald James Vargo is GRANTED.

5) Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Alejandra Vargo is GRANTED.

6) Defendant

Volkswagen Group of America, Inc.'s Requests for Monetary Sanctions are GRANTED.

7) Plaintiffs

Donald James Vargo and Alejandra Vargo shall pay Volkswagen's counsel \$3,280.00 on or before July 28, 2026.

8) These

orders are contingent upon Volkswagen paying two additional filing fees within ten (10) days of the date of this order.

9) Volkswagen

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 14, 2026

Tamara

Hall

Judge

of the Superior Court